Jurni SOFTWARE DEVELOPMENT AGREEMENT

Development Agreement — Bare-Bones MVP

Mobile-responsive web app (no maps) · Draft for negotiation

Version: 1.0 (Draft) **Date:** September 2026 **Governs:** Jurni-DevProposal.pdf (the "Proposal")

1. Parties

- **Client:** The Jurni Team ("the Client"), of _____.
- **Developer:** _____ ("the Developer"), of _____.

Effective Date: _____.

2. Scope of Work

2.1 The Developer will design, build, and deploy the **Jurni Bare-Bones MVP** exactly as described in the Proposal (**Jurni-DevProposal.pdf**), which is **incorporated into this Agreement by reference**, including all scope and deliverables set out in the Proposal (in particular its "What's in and what's out" and "What's included" sections).

2.2 Work **not** listed in the Proposal — including everything under **"Excluded from this MVP"** in the Proposal — is **out of scope** and handled only through a written change order (Clause 8).

3. Fixed Price

3.1 The total fixed price for the Scope of Work is **JMD 2,300,000 (≈ US$14,375** at the working rate US$1 ≈ JMD 160**)**.

3.2 This is a **fixed project price**, not a variable estimate. It is inclusive of the driver-distance bar and the Emergency/SOS safety feature. It **excludes** third-party running costs (Clause 7) and any change orders (Clause 8).

4. Payment Principle — Paid Only After Work Is Delivered

4.1 **The Client pays only for work that has been delivered and accepted.** There is **no upfront payment, deposit, or mobilization fee.** Every payment under this Agreement falls **due after** the corresponding work has been delivered and accepted under Clause 6.

4.2 The Client selects **one** of the payment options in Clause 5. All options bill **in arrears** (after the work), differing only in how the single fixed price is split over time.

5. Payment Options (choose one)

All amounts total the fixed price of **JMD 2,300,000**. All are billed **after** delivery and acceptance — none require money before work is done. The options below reflect common, industry-standard structures for fixed-price software engagements.

Option A — Pay on Completion (single payment) MOST CLIENT-FAVORABLE

- **100% (JMD 2,300,000)** invoiced **once**, after **final delivery and acceptance** (M5) and successful production launch.
- The Developer carries all cash-flow risk for the full project.

TRIGGER	AMOUNT (JMD)	%
Final delivery & acceptance (M5)	2,300,000	100%

Option B — Milestone Payments in Arrears RECOMMENDED

- Each milestone from the Proposal is invoiced **only after that milestone is delivered and accepted** (Clause 6). Spreads cash flow for both sides while keeping every payment post-work.

MILESTONE	DELIVERED BY	AMOUNT (JMD)	%
M1 — Foundation (auth + phone OTP, admin scaffold, data model)	end of week 1	345,000	15%
M2 — Core ride loop (request, zone fares, matching, accept/counter)	end of week 3	690,000	30%
M3 — Trip lifecycle (completion, ratings, history, verification, driver-distance bar)	end of week 4	575,000	25%
M4 — Safety & admin (Emergency/SOS, activity reports, admin config, end-to-end)	end of week 5	345,000	15%
M5 — Launch (QA, pilot, production)	end of week 7	345,000	15%
Total		**2,300,000**	**100%**

Option C — Bi-Weekly Progress Billing in Arrears

- Invoiced **every two weeks** for work **delivered and accepted** in that period, capped at the fixed price. Common in agile engagements; keeps billing close to delivered value.
- Indicative schedule (actual amounts follow accepted work each period; the total never exceeds JMD 2,300,000):

PERIOD	WEEKS	INDICATIVE AMOUNT (JMD)
Billing 1	end of week 2	~575,000
Billing 2	end of week 4	~575,000
Billing 3	end of week 6	~575,000
Final	end of week 7 (on launch)	remainder to 2,300,000

Optional variant — 10% Retention / Holdback

- With **any** option above, the Client may **hold back 10%** of each payment as retention.
- Retention accumulates and is **released after the 30-day warranty period** (Clause 9) once any reported defects are resolved. This is a standard mechanism to protect the Client post-launch.

6. Delivery & Acceptance

6.1 For each milestone (or billing period), the Developer notifies the Client that the deliverable is ready, referencing the **scope and deliverables** described in the Proposal.

6.2 The Client has a **review window of five (5) business days** to test the deliverable against the scope and functionality described in the Proposal and either:

- (a) **accept** it in writing (email is sufficient); or
- (b) **reject** it in writing, listing the specific items of described scope not met.

6.3 On rejection, the Developer corrects the listed items and re-submits; the review window restarts for the re-submitted items only.

6.4 **Deemed acceptance:** if the Client neither accepts nor provides a written rejection within the review window, the deliverable is **deemed accepted**.

6.5 A payment becomes **due only after** the corresponding deliverable is accepted (or deemed accepted).

7. Environments & Third-Party Running Costs

7.1 **Development on a demo environment.** During the development phase, **all work is carried out on a demo / staging environment**, not on a live production environment. This demo environment is used for building, testing, and acceptance review of milestones. The Developer provides and manages this demo environment for the duration of the build, and any minimal costs for it are included in the fixed price unless the parties agree otherwise in writing.

7.2 **Go-live and production infrastructure.** Once the application has been **accepted and is ready to go to production**, the **Client bears the cost of all infrastructure required for production from that point onward** — including the production cloud server, managed database, SMS/phone-OTP, domain/SSL, and any other live-service costs. These are set up on the **Client's own accounts** (or reimbursed to the Developer **at cost** against receipts) and remain the Client's ongoing responsibility after launch.

7.3 These production running costs are **separate from and additional to** the fixed price and are indicative only (see the Proposal's running-costs table). No maps-SDK cost applies to this version.

8. Changes to Scope

8.1 Any work outside the Proposal scope is handled by a **written change order** signed by both parties, stating the added work, price, and any timeline impact.

8.2 Unless agreed otherwise in the change order, out-of-scope work is charged at **JMD _____ / hour** (or a fixed change-order price) and is **also billed in arrears**, after delivery.

9. Warranty

9.1 For **thirty (30) days after production launch**, the Developer will fix, **at no additional charge**, any defect where a delivered feature does not perform as described in the Proposal.

9.2 The warranty excludes new features, third-party service outages, changes the Client makes to the code or environment, and issues caused by misuse.

10. Intellectual Property & Source Code

10.1 On **full payment** of all amounts due under this Agreement, **all intellectual property** in the delivered software and source code **transfers to the Client**.

10.2 Until full payment, the Developer retains ownership; the Client receives a limited licence to use the delivered work for evaluation and acceptance testing.

10.3 The Developer may retain and reuse generic know-how, libraries, and tools not specific to the Client's business.

11. Confidentiality

Each party will keep the other's non-public information confidential and use it only to perform this Agreement, during the engagement and for **two (2) years** afterward.

12. Termination

12.1 Either party may terminate on **fourteen (14) days' written notice**, or immediately if the other party materially breaches and does not cure within fourteen (14) days of written notice.

12.2 On termination, the Client pays for **all work delivered and accepted (or deemed accepted) up to the termination date** — consistent with the "paid only after work is delivered" principle. No payment is owed for undelivered work.

12.3 On payment of amounts due for accepted work, the Developer hands over that work product and associated source code.

13. Independent Contractor

The Developer is an **independent contractor**, not an employee, partner, or agent of the Client. The Developer is responsible for its own taxes, tools, and personnel.

14. Limitation of Liability

14.1 Except for confidentiality breaches or IP infringement, **neither party's total liability exceeds the fixed price actually paid** under this Agreement.

14.2 Neither party is liable for **indirect, incidental, or consequential** damages (including lost profits or data).

15. General

15.1 **Governing law:** the laws of **Jamaica**; the courts of Jamaica have jurisdiction.
15.2 **Entire agreement:** this Agreement and the Proposal are the entire agreement and supersede prior discussions. Conflicts are resolved in favour of this Agreement over the Proposal.
15.3 **Amendments** must be in writing and signed by both parties.
15.4 **Severability:** if any clause is unenforceable, the rest remains in effect.
15.5 **Notices** may be given by email to the addresses the parties designate.

16. Selected Payment Option

The Client selects (tick one):

- ☐ **Option A** — Pay on completion (single payment)
- ☐ **Option B** — Milestone payments in arrears *(recommended)*
- ☐ **Option C** — Bi-weekly progress billing in arrears
- ☐ With **10% retention/holdback** variant applied to the selected option

17. Signatures

Client — The Jurni Team

Signature

Name

Title

Date

Developer

Signature

Name

Title

Date